

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
CHRISTINE ODLE and FRANKLIN
McPHERSON,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JAMES GEBBIA, TAX REG. NO. 934915,
POLICE OFFICERS "JOHN" HERNANDEZ and
"JANE" WATSON, WHOSE FIRST NAMES AND
BADGE NUMBERS ARE PRESENTLY UNKNOWN,
AND POLICE OFFICERS "JOHN DOES 1-3", WHOSE
NAMES AND BADGE NUMBERS ARE
PRESENTLY UNKNOWN,

Defendants.
-----X

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.
★ JUL 07 2009 ★

COMPLAINT
09 2881
BROOKLYN OFFICE

PLAINTIFFS DEMAND
TRIAL BY JURY

GLASSER, J.

J. ORENSTEIN, M.J.

INTRODUCTORY STATEMENT

1. The plaintiffs, CHRISTINE ODLE and FRANKLIN McPHERSON, bring this action under 42 U.S.C. Sec. 1983 and related state laws seeking declaratory relief, compensatory and punitive damages, and attorney's fees under 42 U.S.C. Sec. 1988 for the defendants' violation of their rights afforded by the United States Constitution and under the laws of the State of New York.

2. On August 13, 2008, defendants, New York City Police Officers James Gebbia, "John" Hernandez, "Jane" Watson and "John Does 1-3" assaulted, battered and arrested both plaintiffs without just and probable cause and issued them summonses for

disorderly conduct.

JURISDICTION

3. The court has jurisdiction over plaintiffs' claim under 42 U.S.C. 1983 pursuant to 28 U.S.C. Sec.1331 and Sec 1343(3).

4. The Court has supplemental jurisdiction over plaintiffs' state law claims pursuant to 28 U.S.C. Sec. 1331 and Sec. 1343(3).

5. That prior to the commencement of this action, and within ninety (90) days of the occurrence herein, plaintiffs served notices of claim in writing, upon the defendant, the City of New York, in accordance with Section 50(e) of the General Municipal Law.

6. That more than thirty (30) days passed between the service of plaintiffs' notices of claim and the commencement of this action, and during such period of more than thirty (30) days the defendant City of New York neglected and refused to pay said claim or adjust same.

7. This action was commenced within one year and ninety days of the occurrence complained of herein that gave rise to plaintiffs' injuries, and plaintiffs have complied with all of the prerequisites for bringing this action.

PARTIES

8. The plaintiffs are legal residents of the United States and residents of the State of New York.

9. Defendants James Gebbia, "John" Hernandez and "Jane" Watson, whose first

names and badge numbers are currently unknown, and "John Does 1-3", whose name and badge number are currently unknown, sued herein in both their official and individual capacities, are currently and were, at all times hereafter mentioned, employed by the City of New York as New York City Police Officers. At all times relevant to this action, defendants Madison and "John Does 1-3", upon information and belief, were stationed out of the 63rd Precinct of the New York City Police Department.

10. At all times relevant to this action, defendants Gebbia, Hernandez, Watson and "John Does 1-3" were assigned to work, and in fact did work, as police officers at the 63rd Precinct in Kings County on August 13, 2008.

11. Defendant, the City of New York, is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and as such is responsible for the practices, policies, and customs of the New York City Police Department, as well as the hiring screening, training, supervising, controlling and disciplining of those persons employed by the New York City Police Department.

12. That this action falls within one or more the exceptions set forth in CPLR 1602.

FACTUAL ALLEGATIONS

13. On or about August 13, 2008 at approximately 1:30 A.M., plaintiffs ODLE and McPHERSON were sitting in a motor vehicle on Glendale Court, in the County of Kings, in the City and State of New York.

14. Plaintiffs ODLE observed a male assaulting a female and called 911 to report

the incident.

15. After the 911 report was made, police officers arrived and asked both plaintiffs to step out of the car.

16. Plaintiffs ODLE and McPHERSON implored the police to investigate the assault that they had just seen.

17. Defendants ignored the plaintiffs' and ordered them to exit the car, and police officers choked plaintiff ODLE, pushed her to the ground, handcuffed her and placed under arrest on a charge of disorderly conduct.

18. After plaintiff McPHERSON showed officers his license and registration for the vehicle, he was removed from the vehicle, shoved onto the hood of the vehicle, pushed to the ground, kicked, handcuffed and placed under arrest on a charge of disorderly conduct.

19 Both plaintiffs were handcuffed and taken the 63rd Police Precinct.

20. Plaintiffs ODLE and McPHERSON were issued summonses at the 63rd Precinct and released from custody.

21. Plaintiff ODLE suffered numerous physical injuries which required medical treatment.

22. Plaintiff McPHERSON suffered various physical injuries during the course of the arrest requiring medical treatment.

23. Both plaintiffs were prosecuted for the disorderly conduct charges until March 12, 2009, when all claims and/or charges against them were dismissed on the merits.

24. The plaintiffs did not commit any crimes. The defendants were not justified in physically assaulting and using excessive force on the plaintiffs.

25. The defendants' actions were willful, outrageous, unjustified and not predicated on probable cause.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE ODLE

26. As a direct and proximate result of defendants' actions plaintiff was assaulted, battered, falsely arrested, detained and maliciously prosecuted without legal cause or justification.

27. The actions of the defendants were without any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

28. As a direct and proximate result of defendants' actions, plaintiff was deprived of rights, privileges and immunities secured to her under the Constitution and the laws of the United States including, but not limited to her rights under the Fourth and Fourteenth Amendments and 42 U.S.C. Sec. 1983 to be secure in her person, to be free from excessive force, to be free from false arrest and malicious prosecution, assault and battery without due process, and to equal protection of the laws.

29. Defendants' actions caused plaintiff to suffer physical injury, to be deprived of her liberty, to suffered great pain and suffering and subjected to ridicule, scorn and humiliation by those observing and/or knowing of her detention.

30. As a result of the foregoing, the plaintiff seeks compensatory damages from

all defendants as well as punitive damages from all the individual defendants.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE ODLE

31. Plaintiff repeats and realleges paragraphs 1-30, as if fully set forth herein.

32. As a direct and proximate result of defendants' actions on August 13, 2008, the plaintiff was falsely arrested and detained without just and probable cause and without a warrant.

33. The false arrest of the plaintiff was without any legitimate cause or justification, was intentional, malicious, reckless, in bad faith, and in violation of the laws of the State of New York..

34. Defendants' actions caused plaintiff to be deprived of her liberty, suffered great pain and suffering and was subjected to ridicule, scorn and humiliation by those observing and/or knowing of her detention.

35. As a result of the foregoing, the plaintiff seeks compensatory damages from all defendants as well as punitive damages from all the individual defendants.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE ODLE

36. Plaintiff repeats and realleges paragraphs 1-35, as if fully set forth herein.

37. The plaintiff was prosecuted on the charge of disorderly conduct, without probable cause and with malice by the defendants. This prosecution resulted in a favorable disposition for the plaintiff.

38. Defendants' actions caused plaintiff to suffer great pain and suffering and was subjected to ridicule, scorn and humiliation by those observing and/or knowing of this prosecution.

39. As a result of the foregoing, the plaintiff seeks compensatory damages from all of the defendants and punitive damages from the individual defendants.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE ODLE

40. Plaintiff repeats and realleges paragraphs 1-39, as if fully set forth herein

41. On August 13, 2008 the plaintiff was assaulted and battered by the defendants during the course of the arrest, including but not limited to being choked, thrown to the ground, and having her arms twisted.

42. The assault and battery of the plaintiff was without any legitimate cause or justification and in violation of the laws of the State of New York..

43. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority, and without probable cause, the plaintiff suffered great bodily injury in and about her head and body. She was rendered sick, sore, lame and disabled, among other things, she suffered conscious pain and suffering, and that she was otherwise damaged.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE ODLE

44. Plaintiffs repeat and reallege paragraphs 1-43, as if fully set forth herein.

45. Defendant, the City of New York, was careless and reckless in hiring, retaining and training its employees; in that the defendant's employees lacked the experience, deportment and ability to be employed by the defendant; in that the defendant failed to exercise due care and caution in its hiring practices and was negligent in investigating the charges against the plaintiff.

46. Defendant, the City of New York, its agents, servants and employees, negligently, carelessly and recklessly failed to properly train and supervise its employees, in that it failed to train its employees to act as reasonably, prudent police officers; failed to give them proper instruction as to their deportment, behavior and conduct as representatives of their employers; and were otherwise reckless, careless and negligent.

47. Defendant's actions caused plaintiff to be deprived of her liberty, suffered great pain and suffering and was subjected to ridicule, scorn and humiliation by those observing and/or knowing of her detention.

48. As a result of the foregoing, this plaintiff seeks compensatory damages from the City of New York in the amount of five hundred thousand (\$500,000.00) dollars.

AS AND FOR A SIXTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF FRANKLIN McPHERSON

49. Plaintiff repeats and realleges paragraphs 1-48, as if fully set forth herein

50. As a direct and proximate result of defendants' actions plaintiff was assaulted, battered, falsely arrested, detained and maliciously prosecuted without legal cause or

justification.

51. The actions of the defendants were without any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

52. As a direct and proximate result of defendants' actions, plaintiff was deprived of rights, privileges and immunities secured to him under the Constitution and the laws of the United States including, but not limited to his rights under the Fourth and Fourteenth Amendments and 42 U.S.C. Sec. 1983 to be secure in his person, to be free from excessive force, to be free from false arrest and malicious prosecution, assault and battery without due process, and to equal protection of the laws.

53. Defendants' actions caused plaintiff to suffer great pain and suffering and was subjected to ridicule, scorn and humiliation by those observing and/or knowing of this prosecution..

54. As a result of the foregoing, the plaintiff seeks compensatory damages from all defendants as well as punitive damages from all the individual defendants.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FRANKLIN McPHERSON

55. Plaintiff repeats and realleges paragraphs 1-54, as if fully set forth herein.

56. As a direct and proximate result of defendants' actions on August 13, 2008, the plaintiff was falsely arrested and detained without just and probable cause and without a warrant.

57. The false arrest of the plaintiff was without any legitimate cause or justification, was intentional, malicious, reckless, in bad faith, and in violation of the laws

of the State of New York..

58. Defendants' actions caused plaintiff to be deprived of his liberty, suffered great pain and suffering and was subjected to ridicule, scorn and humiliation by those observing and/or knowing of his detention.

59. As a result of the foregoing, the plaintiff seeks compensatory damages from all defendants as well as punitive damages from all the individual defendants.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FRANKLIN McPHERSON

60. Plaintiff repeats and realleges paragraphs 1-59, as if fully set forth herein.

61. The plaintiff was prosecuted on the charge of disorderly conduct, without probable cause and with malice by the defendants. This prosecution resulted in a favorable disposition for the plaintiff.

62. Defendants' actions caused plaintiff to suffer great pain and suffering and was subjected to ridicule, scorn and humiliation by those observing and/or knowing of this prosecution.

63. As a result of the foregoing, the plaintiff seeks compensatory damages from all of the defendants and punitive damages from the individual defendants.

AS AND FOR A NINTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF FRANKLIN McPHERSON

64. Plaintiff repeats and realleges paragraphs 1-63, as if fully set forth herein.

65. On August 13, 2008, the plaintiff was assaulted and battered by the

defendants during the course of the arrest, including but not limited to being shoved onto the hood of a vehicle, pushed to the ground, and kicked.

66. The assault and battery of the plaintiff was without any legitimate cause or justification and in violation of the laws of the State of New York..

67. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority, and without probable cause, the plaintiff suffered great bodily injury in and about his head and body. He was rendered sick, sore, lame and disabled, among other things, he suffered conscious pain and suffering, and that he was otherwise damaged.

AS AND FOR A TENTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF FRANKLIN McPHERSON

68. Plaintiff repeats and realleges paragraphs 1-67, as if fully set forth herein.

69. That the defendant, the City of New York, was careless and reckless in hiring, retaining and training its employees; in that the defendant's employees lacked the experience, deportment and ability to be employed by the defendant; in that the defendants failed to exercise due care and caution in its hiring practices.

70. That the defendant, its agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in that they failed to train their employees to act as reasonably, prudent police officers; failed to give them proper instruction as to their deportment, behavior and conduct as representatives of their employers; and, in that the defendant, its agents, servants and employees were otherwise

reckless, careless and negligent.

71. Defendant's actions caused plaintiff to be deprived of his liberty, suffered great pain and suffering and was subjected to ridicule, scorn and humiliation by those observing and/or knowing of his detention.

72. As a result of the foregoing, the plaintiff seeks compensatory damages from the City of New York.

JURY DEMAND

73. The plaintiffs respectfully demand that this proceeding be tried by a jury.

WHEREFORE, plaintiffs pray for the following relief:

- 1) For declaratory judgments under 28 U.S.C. Sec. 2201 declaring that the defendants, separately and in concert, violated the plaintiffs' constitutional rights; and
- 2) For compensatory damages against all defendants; and
- 3) For punitive damages against defendants GEBBIA, HERNANDEZ, WATSON and "JOHN DOES"; and
- 4) For attorney's fees and costs pursuant to 42 U.S.C. Sec. 1988; and
- 5) For other relief as is just and proper.

Dated: Brooklyn, New York
June 17, 2009


EDWARD FRIEDMAN, ESQ.
EDF-4000

Attorney for Plaintiffs
26 Court Street - Suite 1903
Brooklyn, New York 11242
(718) 852-8849